

26TRCV01240 26TRCV01240

County: los-angeles

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Case Number: 26TRCV01240 Hearing Date: September 10, 2026 Dept: M

LOS ANGELES

SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter Thursday, September 10, 2026 Department

M Calendar

No.

PROCEEDINGS

Krystal

Caponio v. Rivian, LLC, et al.

26TRCV01240

1. Rivian LLC's Motion to Compel Arbitration and Stay

Action

TENTATIVE RULING

Rivian LLC's Motion to Compel Arbitration and Stay

Action is granted.

Background

Plaintiff filed the Complaint on April 7, 2026. Plaintiff

alleges the following facts. Plaintiff alleges that the subject 2023 R1S Tri

Motor Max Pack, which was manufactured and distributed by Defendant, suffered

from widespread defects. Plaintiff alleges causes of action based on violations

of the Song-Beverly Warranty Act.

Motion to Compel Arbitration

“California law

reflects a strong public policy in favor of arbitration as a relatively quick and inexpensive method for resolving disputes.

[Citation.] To further that policy, [Code of Civil Procedure]

section 1281.2 requires a trial court to enforce a written arbitration agreement unless one of three limited exceptions applies. [Citation.]

Those statutory exceptions arise where (1) a party waives the right to arbitration; (2) grounds exist for revoking the arbitration agreement; and (3) pending litigation with a third party creates the possibility of conflicting rulings on common factual or legal issues.

(§ 1281.2, subds. (a)–(c).)” Acquire

II, Ltd. v. Colton Real Estate Group (2013) 213 Cal.App.4th 959, 967.

“The petitioner bears the burden of

proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.”

Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.

“The party opposing arbitration has

the burden of demonstrating that an arbitration clause cannot be interpreted to require arbitration of the dispute.

Nonetheless, this policy does not override ordinary principles of contract interpretation. [T]he

contractual terms themselves must be carefully examined before the parties to the contract can be ordered to arbitration:

Although [t]he law favors contracts for arbitration of disputes between parties, there is no policy compelling persons to accept arbitration of

controversies which they have not agreed to arbitrate.” Rice v. Downs (2016) 247 Cal.App.4th 1213, 1223 (internal citations and quotations omitted).

In *Rowe v. Exline* (2007) 153 Cal.App.4th 1276, 1286, the Court of Appeal found that “a nonsignatory sued as an agent of a signatory may enforce an arbitration agreement.” *Id.* at 1286. In addition, “a nonsignatory who is the agent of a signatory can even be compelled to arbitrate claims against his will.” *Id.* at 1285, citing *Harris v. Superior Court* (1986) 188 Cal.App.3d 475, 477–78. Further, “in many cases, nonparties to arbitration agreements are allowed to enforce those agreements where there is sufficient identity of parties.” *Valley Casework, Inc. v. Comfort Construction, Inc.* (1999) 76 Cal.App.4th 1013, 1021. This includes nonparties as agents of a party as well as “a third party beneficiary of an arbitration agreement.” *Ibid.*

“Under the doctrine of equitable estoppel, [...] a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are intimately founded in and intertwined with the underlying contract obligations. By relying on contract terms in a claim against a nonsignatory defendant, even if not exclusively, a plaintiff may be equitably estopped from repudiating the arbitration clause contained in that agreement. Where the equitable estoppel doctrine applies, the nonsignatory has a right to enforce the arbitration agreement.” *Felisilda v. FCA US LLC* (2020) 53 Cal.App.5th 486, 495–96 (internal citations and quotations omitted).

Code Civ. Proc., § 1281.2 states, in relevant part: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists[. . .]” “Generally, an arbitration agreement must be memorialized in writing. A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement. A signed agreement is not necessary, however, and a party’s acceptance may be implied in fact or be effectuated by delegated consent. An arbitration clause within a contract may be binding on a party even if the party never actually read the clause.” *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236 (internal citations omitted).

The burden of production of evidence in the context of a motion to compel arbitration was cogently articulated by

the following case. “First, the moving party bears the burden of producing prima facie evidence of a written agreement to arbitrate the controversy. The moving party can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature. Alternatively, the moving party can meet its burden by setting forth the agreement's provisions in the motion. For this step, it is not necessary to follow the normal procedures of document authentication. If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion. [¶] If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. [¶] If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–166 (internal citations and quotations omitted).

Defendant moves for an order compelling arbitration of Plaintiff's claims and for an order for stay pending completion of arbitration. The motion is made pursuant to Code of Civil Procedure § 1281 et seq. and the FAA, on the grounds that Plaintiff is bound by a written agreement to arbitrate the subject matter of the Complaint. Defendant argues that a valid arbitration agreement exists between the parties that requires arbitration of Plaintiff's claims.

Defendant has met its initial burden of producing prima facie evidence of a written agreement to arbitrate. (Decl., Justin Hardy, ¶¶ 2-5, Ex. A; Decl., Lucia Caffey, ¶¶ 1-3). Pursuant to the Motor Vehicle Purchase Agreement between the parties, Defendant has identified a valid arbitration provision. The provision states in relevant part: “To the fullest extent permitted by applicable law and except for small claims or if You choose to opt-out as provided below, You and Rivian agree to resolve any claims, demands, disagreements, or disputes between us whether based in contract, tort, statute or otherwise arising from or related to this Agreement

or Our relationship, including advertising and other communications between You and Rivian, Rivian products or services, and as applicable, Your credit application, or the purchase or condition of the Vehicle (a "Dispute") by binding arbitration conducted by the American Arbitration Association ("AAA") in accordance with the AAA Consumer Arbitration Rules, unless You and We agree otherwise. For more information on arbitration and to access the AAA Consumer Arbitration Rules, please visit: www.adr.org. If the AAA Consumer Arbitration Rules conflict with this Agreement, then this Agreement shall control. You and We understand that we are both waiving our rights to go to court (other than small claims court, as provided below), to present our claims to a jury and to have claims resolved by a jury trial, and also that judicial appeal rights, if any, are more limited in arbitration than they would be in court." (Decl., Justus Hardy, Ex. A, ¶ 16).

Therefore, the burden shifts to Plaintiff to show she did not enter into the agreement or that the arbitration clause should not be enforced. *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–166; *Rice*, supra, 247 Cal.App.4th at 1223. Plaintiff did not meet her burden to show that she did not enter into the agreement or that the arbitration agreement should not be enforced. Plaintiff filed no written opposition to this motion.

Therefore, the Motion to Compel Arbitration is granted. The Court action is ordered stayed pending completion of arbitration. An OSC re: status of arbitration is set for _____.

Defendant is ordered to give notice of this ruling.